

SJC looks ready to rule on audit of Legislature

Battle between DiZoglio, lawmakers has lasted years

By Kelly Garrity
GLOBE STAFF

For those weary of waiting for answers on a long-sought audit of the Legislature, the long-running melodrama may almost be over.

Justices of the Massachusetts Supreme Judicial Court heard arguments Wednesday over whether and how state Auditor Diana DiZoglio can challenge the Legislature over its refusal to submit to an audit from her office, which was made possible through a ballot question voters approved nearly two years ago.

The justices appeared inclined to rule on an even bigger issue hanging over the fight — whether the audit itself passes constitutional muster. At the very least, the justices seemed intent on putting to bed part of the fractious debate that's raged between DiZoglio and state lawmakers and Attorney General Andrea Joy Campbell.

"People have an interest in having that resolved, and this court ultimately decides whether that's constitutional," Justice Scott Kafker said, addressing Assistant Massachusetts Attorney General Anne Sterman, who represented the Legislature, and the attorney for DiZoglio, Shannon Liss-Riordan. "You're both battling each other to

AUDIT, Page A7

TED TURNER 1938-2026

Brash and uncontainable father of 24-hour news

By Adam Bernstein
WASHINGTON POST

Ted Turner, a mercurial tycoon and gadfly visionary whose "superstation" TBS was a cornerstone of cable TV's early success, whose 24-hour news channel CNN revolutionized TV journalism, and whose sprawling legacy encompassed conservation, philanthropy, and professional sports, died Wednesday at his home near Tallahassee. He was 87.

His death was confirmed by Phillip Evans, a spokesman for Turner Enterprises. Mr. Turner revealed in 2018 that he had Lewy body dementia, a progressive brain disorder.

A serial entrepreneur known as "the Mouth of the South" for his bellicosity and bravado, Mr. Turner took over his family's Georgia-based billboard company at 24, after his father's suicide, and transformed the business into a media juggernaut that would forever alter broadcasting.

"CNN really heralds the world of Twitter and social networks and interactivity," said Ken Auletta, a Turner biographer and media writer for The New Yorker. "During the Persian Gulf War, you had a live war for the first time, without commercial breaks. You'd see bombs dropping and people screaming



Mr. Turner put family below business and sailing on his list of priorities.

TURNER, Page C9

Despite turmoil, BSO sees support

Says new donors making up for withheld large gifts

By Malcolm Gay
GLOBE STAFF

The Boston Symphony Orchestra is on track to meet its annual fund-raising goals, though large gifts are "on hold," according to a new internal document obtained by the Globe, countering reports that donations to the organization tanked when it abruptly fired music director Andris Nelsons.

A letter sent Sunday on behalf of Barbara Hostetter, chair of the symphony's board of trustees, acknowledged that some "longstanding donors/subscribers are withholding their annual gifts and expressing concerns around the current turmoil" but added, "we are seeing new and current donors increase their giving and committing additional 'one-time' gifts to support leadership at this critical time."

At the same time, however, the upheaval has forced the BSO to temporarily suspend its major gift program, the letter said — potentially a sign major prospective donors,

whose gifts can range in the tens of millions of dollars and are critical to the symphony's long-term health, are skittish about internal divisions as leadership seeks to remake the organization.

The letter, addressed to the BSO's nonvoting board of advisors, was sent in response to an editorial in the Globe on Sunday that argued, in part, fund-raising was "plunging" after the board "touched off a war with its own musicians and patrons" after dismissing Nelsons, who will step down at the close of the 2027 Tanglewood season. (The Globe's editorial board operates in-

dependently of the newsroom.)

The Hostetter letter charged the editorial "mischaracterizes the Board's stewardship and care of the institution," noting that fund-raising soared to an historic \$70 million last year, "catalyzed by significant donors wanting to support the ideas and priorities" of its plan to attract new audiences.

"In particular, the patently false statements about the BSO's fund-raising, after a record year of philanthropy, are truly frustrating," it read. "We are now focused on how we can rebuild alignment around

BSO, Page A10

DANGER ABOARD SHIP



A MISPER APAWU/ASSOCIATED PRESS

The cruise ship at the center of a hantavirus outbreak pulled into port in Praia, Cape Verde, on Wednesday so that health workers could evacuate two patients with the virus and one suspected of infection. The ship then departed with about 150 people on board, isolated in their cabins, and headed to Spain's Canary Islands. **A3.**

State Police mourn trooper killed in wrong-way crash on Route 1

By Brian MacQuarrie, John R. Ellement, and Travis Andersen
GLOBE STAFF
and Hannah Goeke
GLOBE CORRESPONDENT

DANVERS — State Police Trooper Kevin Trainor, a 30-year-old with three years on the force, had just completed his shift Wednesday when he began driving home to Georgetown about 2 a.m.

At 2:01 a.m., the first of several 911 calls ended Trainor's leisurely late-night commute, abruptly shifting his focus from that of an off-duty trooper to a fast-moving, high-stakes, emergency responder.

Answering that call would cost Trainor his life in a head-on crash with a wrong-way driver and plunge the State Police into mourning.

In the call, a Jeep had been reported traveling south in the northbound lanes of Route 1 near the Lynnfield overpass, which prompted Trainor and other troopers to rush to the scene, where they spotted the vehicle at 2:03 a.m.

"I have a wrong-way traveling south on north Route 1 by the Lynnfield tunnel heading toward Saugus," a trooper said, according to police and Broadcastify recordings. "Gray Jeep. Massachusetts plates."

The two vehicles collided about 17 seconds later near a Mercedes-Benz dealership.

The driver of the Jeep, who died at the scene, was identified by authorities as Hernan Marrero, 50, of Roslindale. Trainor, rushed by ambulance to Massachusetts General Hospital in Boston, was pronounced dead later Wednesday.

At the crash scene, troopers struggled in vain to pull Trainor from the mangled wreckage of his vehicle, reporting at one point that he was trapped inside.

"Can you tell EMS to step it up and send fire? The door's jammed,

CRASH, Page A7

Iran said it is reviewing an American proposal to end the war, a day after President Trump abruptly paused a new US effort to protect ships in the Strait of Hormuz. **A3.**

Maine Senator Susan Collins revealed she has long been diagnosed with a tremor but said it hasn't affected her ability to do her job. **A6.**

GBH is relaunching "American Experience" less than a year after it paused new productions and laid off staff due to federal funding cuts. **D1.**

Joe Mazzulla has to stop being so stubborn about three-pointers if the Celtics are going to go further in the future, writes Christopher L. Gasper. **C1.**



Sneeze the day

Thursday: Clearing, still breezy. High 65-70. Low 44-49.

Friday: More of the same. High 61-66. Low 44-49.

Sunrise: 5:32 Sunset: 7:50

Weather and Comics, D5-6.

VOL. 309, NO. 127

Suggested retail price
\$4.00



0 947725 4

18412

BARISTAS, Page A10

For baristas, a grande pain, with notes of desperation

Starbucks pushes workers' buttons with new policy



ALLY RZESA/GLOBE STAFF

BETH TEITELL
COMMENTARY

It started as a lighthearted inquiry into the messages Starbucks baristas write on drink cups — a quest to find the poet laureate of caffeinated affirmations. "Stay cool!" "You rock!" "Be kind!" What I discovered instead was a world of forced cheer that has left me unable to look at my iced coffee without seeing a cry for help.

The happy notes aren't something baristas nationwide spontaneously started scribbling in early 2025, so overcome with good wishes (albeit for strangers) that they just had to add an additional step to drink orders that are already more complicated than the skin care routine of a Sephora tween.

No. The messages are the result of a policy handed down by CEO Brian Niccol (\$31 million in total compensation in 2025) as